

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter of

**CERTAIN MOBILE ELECTRONIC
DEVICES AND COMPONENTS
THEREOF**

Investigation No. 337-TA-_____

Docket No. 3934

PROPOSED RESPONDENT APPLE INC.'S PUBLIC INTEREST STATEMENT

Pursuant to 19 C.F.R. §§ 210.8(c) and 210.50(b)(1), proposed Respondent Apple Inc. (“Apple”) submits this statement in response to the Notice of Receipt of the Complaint filed by trinamiX Sensing LLC and trinamiX GmbH (collectively, “trinamiX” or “Complainants”). The remedial orders Complainants seek would adversely affect each of the statutory public interest factors. 19 U.S.C. § 1337(d)(1), (f)(1). Apple respectfully requests that, if the Commission institutes an investigation, it delegates to the presiding Administrative Law Judge (“ALJ”) the taking of evidence and the issuance of a recommended determination on the public interest.

I. The Requested Orders Would Exclude Entire Flagship Product Lines.

The scope of the requested relief drives the analysis of the public interest factors. Complainants seek a limited exclusion order and cease and desist orders reaching “certain iPhones and iPads incorporating face authentication, 3D-sensing, and/or material detection capabilities,” together with “components thereof.” Compl. ¶¶ 5-7, Prayer (c)-(d). The accused functionality is Face ID, the authentication subsystem on which Apple’s current flagship iPhone and iPad Pro lines primarily depend for security, and which is embedded in dedicated hardware as well as software. The practical effect of the relief sought is the exclusion of major Apple product lines, based on a single embedded security feature.

II. Public Health and Welfare Would Be Adversely Affected.

Apple’s iPhone and iPad are not ordinary consumer electronics. Hundreds of millions of

Americans rely on them as essential communication, health, safety, financial, and navigation tools.¹ Complainants’ description of the Accused Products as devices merely used for “media playback” and “third-party applications” grossly understates the importance and use of these Apple devices across the United States.

Face ID is not incidental to those uses. It is the gate through which the vast majority of users reach passwords, protected health records, prescription and insurance portals, financial credentials, government benefits applications, and enterprise and public-safety systems requiring biometric authentication. Excluding the devices that carry such authentication from the United States would affect patients managing chronic conditions, older adults, and users with motor, vision, or cognitive impairments. For these users, repeated passcode entries can be extremely difficult or impracticable. A passcode is a fallback, not an equivalent: it is entered in public view, is vulnerable to observation and theft, and cannot supply the authentication assurance that health, financial, enterprise, and government applications increasingly require. Federal security standards confirm that a passcode is no substitute. Under the government’s authentication guidelines, which federal agencies must follow for their own systems, secure access requires two different kinds of proof: something you have and something you are.² An iPhone or iPad unlocked by Face ID supplies both. Further confirming the high level of security provided by Face ID is that fact that the iPhone and iPad are the only consumer devices approved for use with classified information in a NATO restricted environment.³

III. Any Order Would Adversely Affect the Competitive Conditions and the Production of Like or Directly Competitive Articles in the United States.

¹ See Apple, *Empowering people to take charge of their health* (Oct. 2023), <https://www.apple.com/newsroom/pdfs/Health-Report-October-2023.pdf>, at 9-16.

² See <https://pages.nist.gov/800-63-3-Implementation-Resources/63B/AAL/>.

³ See Apple Newsroom, *iPhone and iPad approved to handle classified NATO information* (Feb. 26, 2026), <https://www.apple.com/newsroom/2026/02/iphone-and-ipad-approved-to-handle-classified-nato-information/>.

The requested orders would distort competitive conditions in the United States without any offsetting benefit to domestic competition. The requested exclusion order would reduce the available supply of secure mobile devices in the United States without adding a single equally secure article to replace it. Complainants manufacture no smartphones or tablets, and the Complaint confirms that trinatiX “has not licensed the Asserted Patents to Apple or any other third parties.” *Id.* ¶ 59.

Nor are other available face authentication technologies adequate alternatives because those technologies do not offer comparable security. Android classifies biometric implementations into three tiers—Class 3 (formerly “Strong”), Class 2 (formerly “Weak”), and Class 1 (formerly “Convenience”)—based on spoof acceptance rate, false acceptance rate, and the integrity of the biometric pipeline, and only Class 3 authenticators may be used to unlock digital security key credentials or authorize payments.⁴ The face unlock feature available on most competing devices falls in the lower tiers, relying on a two-dimensional image captured by the ordinary selfie camera rather than on infrared illumination and depth sensing. The consequence is not theoretical. In testing of 208 smartphones conducted between October 2022 and 2026, 133 of them or 64% were unlocked using nothing more than a printed two-dimensional photograph of the enrolled user, a failure spanning many brands of competing smartphones and extending to flagship competitor models.⁵ Two of the three smartphone suppliers Complainants identify as alternatives appear on that list. Complainants cannot dispute the point because their own Complaint rests on it: alleging that “[c]onventional face recognition systems are vulnerable to spoofing,” that “many face unlock features can be defeated using photographs, 3D-printed masks, or silicone replicas.”

⁴ See <https://source.android.com/docs/security/features/biometric/measure>.

⁵ See <https://www.which.co.uk/policy-and-insight/article/smartphones-have-face-recognition-that-can-be-easily-spoofed-with-2d-photo-which-finds-arM1G1p8R6mY>.

Compl. ¶¶ 22, 24. In addition to the impact on supply, any orders would adversely affect the production of like or directly competitive articles in this country as they would fall directly on a United States-anchored network of engineering, component production, suppliers, and advanced manufacturing. Apple supports more than 2.9 million United States jobs, plans to hire approximately 20,000 additional United States employees, and has nearly doubled its United States-based advanced research and development spending over 5 years.⁶ In addition, Apple is doubling its United States Manufacturing Fund to \$10 billion, and the Apple Manufacturing Academy has supported more than 150 American businesses.⁷

An order barring the importation and sale of flagship Apple products would reduce the revenue that sustains this investment, and in turn the domestic employment tied to that revenue. iPhone and iPad sales support American jobs well beyond Apple's own payroll and its component suppliers, extending to retail and carrier sales and activation, logistics and distribution, authorized service and repair, accessory manufacturing, enterprise deployment and IT support, and the substantial United States software developer economy that builds for these platforms. Each of those sectors depends on continued device sales volume, and because the orders would reach the flagship lines rather than a discrete accessory or optional feature, the volume reduction and the employment effects that follow from it would be correspondingly broad.

An ALJ found a similar constellation of public interest issues, including concerns for national security, to justify denying an exclusion order against Apple in *Certain Mobile Electronic*

⁶Apple will spend more than \$500 billion in the U.S. over the next four years, Apple (Feb. 24, 2025) available at <https://www.apple.com/newsroom/2025/02/apple-will-spend-more-than-500-billion-usd-in-the-us-over-the-next-four-years/>; Apple increases U.S. commitment to \$600 billion, announces American Manufacturing Program, Apple (Aug. 6, 2025), <https://www.apple.com/newsroom/2025/08/apple-increases-us-commitment-to-600-billion-usd-announces-ambitious-program/>.

⁷ Apple will spend more than \$500 billion in the U.S. over the next four years, Apple (Feb. 24, 2025), <https://www.apple.com/newsroom/2025/02/apple-will-spend-more-than-500-billion-usd-in-the-us-over-the-next-four-years/>.

Devices & Radio Frequency & Processing Components, Inv. No. 337-TA-1065, ID at 105-109 (Sept. 28, 2018). That another ALJ found differently in a parallel investigation only underscores the benefit of developing a full evidentiary record for the Commission.⁸

IV. United States Consumers Would Bear the Cost.

The burden of the requested orders would ultimately be borne by American consumers, who would lose access to products with an important security feature. Complainants point to lower-tier tablets that lack the accused functionality altogether. And they point to competing handsets from other manufacturers. A consumer who requires or seeks secure biometric authentication, however, is not made whole by a product that does not offer it.

The consumers most affected are the least able to absorb the loss. Enterprise, healthcare, financial services, and government users have built device management, security, and compliance programs around the authentication capability at issue. Institutional purchasers cannot migrate to alternative platforms quickly or cheaply; doing so requires revalidating applications, retraining personnel, and reprocurring hardware, and the cost of that transition falls on hospitals, agencies, schools, and businesses that made their investments in reliance on the continued availability of these devices.

V. Conclusion

The requested remedial orders would adversely affect each of the statutory public interest factors. Apple respectfully requests that the Commission delegate public interest fact-finding to the ALJ under 19 C.F.R. § 210.50(b)(1) so that the evidentiary record may be fully developed.

⁸ See *Certain Mobile Elec. Devices & Radio Frequency & Processing Components*, Inv. No. 337-TA-1093 Pub. Int. Findings (Apr. 16, 2019).

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Respectfully submitted,

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